

		Plaintiff will appear by Court Call, 1 hour to prepare and attend the hearing is more than sufficient. After reviewing the time entries at issue, the recommendation is to reduce the following: 1) Client intake fees – these services (drafting the attorney client agreement, communications regarding the agreement, etc.) are a part of doing business and should not be passed on to Defendants. 2) One hour to prepare for the hearing on this motion Based on the Court’s review of the papers submitted in support and in opposition to this motion, and the procedural history of this case, the Court finds that Plaintiff reasonably incurred \$36,572.50 in attorneys’ fees. Defendants contend Plaintiff’s requested costs for “Other” costs should be reduced. However, Defendants did not file a motion to tax or strike costs. “Delay (or failure) to challenge a costs bill waives any objection to the costs claimed thereon.” (<i>Douglas v. Willis</i> (1994) 27 Cal.App.4th 287, 290.) In addition, Defendants’ request is untimely. (Cal. Rules of Ct., Rule 3.1700(b).) Defendants’ request is denied. Plaintiff’s motion for fees is granted. Plaintiff is awarded \$36,572.50 in attorneys’ fees and \$3,010.89 in costs. Plaintiff shall give notice.
8.	2025-1494177 The Springs Condominium vs. Beavis	Plaintiff The Springs Condominium’s Motion for Publication of Summons and Complaint is denied. Plaintiff moves, under CCP section 415.50, for an order allowing it to serve process, by publication, against a defendant that has been named in the Complaint as “Andrew” and “Trespassing Defendant.” The Court finds this designation of the defendant is not sufficient to permit service by publication. Before allowing a plaintiff to resort to service by publication, the courts necessarily require the plaintiff to show exhaustive attempts to locate the defendant, for it is generally recognized that service by publication rarely results in actual notice.” (<i>Watts v. Crawford</i> (1995) 10 Cal.4th 743, 749, fn. 5 [noting that “number of honest attempts to learn defendant’s whereabouts or his address” should be made, such as by “inquiry of relatives” and “investigation of appropriate city and telephone directories,” and other “likely sources of information”].) “If a defendant's address is ascertainable, a

		method of service superior to publication must be employed, because constitutional principles of due process of law, as well as the authorizing statute, require that service by publication be utilized only as a last resort.” (<i>Ibid.</i>) “[T]he traditional rule is that the requirements for service of summons by publication must be <i>strictly</i> complied with.” (<i>County of Riverside v. Superior Court</i> (1997) 54 Cal.App.4th 443, 450, emphasis in original.) If the requirements for publication are not met, the service is ineffective and the default judgment entered thereon is void. (<i>Olvera v. Olvera</i> (1991) 232 Cal.App.3d 32, 41.) The testimony from Plaintiff’s process server shows why it may be difficult for Plaintiff to serve the “Trespassing Defendant.” Nevertheless, publication would not be an appropriate method of service, because Plaintiff is unable to identify the defendant by his full name and only refers to him as “Andrew” or “Trespassing Defendant.” The fact that a broader investigation may not be possible does not mean it can be excused in order to allow service by publication. It is understood that publication rarely results in actual notice, but publication without so much as a defendant’s full name seems virtually worthless. For the foregoing reasons the motion to serve “Trespassing Defendant” by publication is denied. The Court notes, if Plaintiff is unable to accomplish personal service, relief may be available under CCP section 413.30. Under section 413.30, if a plaintiff who, “despite exercising reasonable diligence, has been unable to effect service of the summons by any of the methods authorized under this chapter,” the court may “direct that summons be served in a manner that is reasonably calculated to give actual notice to the party to be served, including by electronic mail or other electronic technology, and that proof of such service be made as prescribed by the court.” Non-traditional methods for serving process, such as mail and posting, or electronic service, may be available under this section. (See, e.g., <i>Cohen v. Board of Supervisors</i> (1971) 20 Cal.App.3d 236, 239; <i>Bush v. Writers Guild of America, West, Inc.</i> (C.D. Cal., Apr. 20, 2026, No. 2:25-CV-11038-RGK-AGR) 2026 WL 1122205, at *3.) The Clerk shall give notice of the ruling.
10.	2025-1487435 Davis vs. Baron	Defendant Brian Baron’s demurrer to plaintiff Kimberly Ann Davis’ complaint is moot in light of the order granting his special motion to strike her complaint. [ROA ##34, 129.] Defendant Tustin Police Department’s demurrer to Plaintiff’s . complaint is sustained with 21 days leave to amend. [ROA #13.]